

Sneha Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 May 2014 · Writ - C No. 28353 of 2014 · **Writ dismissed as premature.**

HEADNOTE

Mandamus to grant a new electricity connection in rented premises was refused. Clause 4.1 of the U.P. Electricity Supply Code, 2005 obliges the licensee to supply within one month of a completed application by the owner or occupier. The petitioner's application of 10 May 2014 was incomplete, and she approached the Court without awaiting the prescribed period. The writ was dismissed as premature.

FACTUAL SUMMARY

Sneha Devi occupied rented accommodation and applied to the distribution licensee for an electricity connection on 10 May 2014. The photocopy of the application annexed to the writ petition showed that the form was incomplete, with many columns left unfilled. Eleven days later, without waiting for the one-month period prescribed in the Supply Code after receipt of a completed application, she approached the Allahabad High Court seeking a mandamus to command the respondents to provide the connection in the premises in her possession.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

new connection; completed application; one-month period

HOLDING

Clause 4.1 of the U.P. Electricity Supply Code, 2005 requires the licensee, on an application by the owner or occupier of premises in its area of supply, to give supply within one month after receipt of a completed application. An application with many columns unfilled is not a completed application, and a writ of mandamus for a new connection filed before expiry of that period is premature and liable to be dismissed. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises

Mandamus to grant a new electricity connection in rented premises was refused. Clause 4.1 of the U.P. Electricity Supply Code, 2005 obliges the licensee to supply within one month of a completed application by the owner or occupier.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT OF THE OCCUPIER OF RENTED PREMISES TO A NEW CONNECTION ON THE MERITS

The Court did not reach the claim for supply; the writ was dismissed as premature because the application was incomplete and the clause 4.1 period had not expired. ¶ 1